

**NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS
AGENCY (NEAEA)**

**NATIONAL EXIT EXAMINATION FOR
LL.B PROGRAMME STUDENTS OF ETHIOPIAN LAW SCHOOLS**

ACADEMIC YEAR 2020/ 2021

05 AUGUST 2021

TIME ALLOWED: 3:00 HOURS

PART III: PROCEDURAL LAWS AND SKILLS

INSTRUCTIONS:

- THIS IS A CLOSED BOOK EXAM FOR ALL MATERIALS EXCEPT
CLEAN COPIES OF
 - a) THE CIVIL PROCEDURE CODE,
 - b) THE CRIMINAL PROCEDURE CODE,
 - c) THE CRIMINAL CODE,
 - d) THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION
AND
 - e) CORRUPTION CRIME PROCLAMATIONS (SUBSTANTIVE AND
PROCEDURAL) WHICH CANNOT BE LENT TO NOR BORROWED
FROM OTHER STUDENTS.
- THE EXAM HAS FIVE SECTIONS. THE GRADES ALLOTTED FOR
EACH SECTION ARE INDICATED BESIDE THE TITLE OF THE
SECTION.
- WHENEVER APPROPRIATE, SUPPORT YOUR ARGUMENTS WITH
PERTINENT LEGAL PROVISIONS.
- YOU ARE EXPECTED TO ALLOCATE YOUR TIME BASED ON THE
MARKS ALLOTTED PER QUESTION.
- WRITE YOUR ANSWERS IN THE ANSWER SHEET PROVIDED.
- SWITCH OFF YOUR MOBILE PHONES.

PLEASE DO NOT TURN THIS PAGE UNTIL YOU ARE TOLD TO DO SO!

SECTION I: MULTIPLE CHOICE QUESTIONS (30 marks)
CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET.

1. Which one of the following statements is true about issues?
 - A. Whenever there is a civil suit, it is mandatory for the court to *frame* an issue or issues.
 - B. There might be circumstances where a decision may be made by w without framing an issue.
 - C. A civil suit is expected to contain either a legal issue or a factual issue.
 - D. Issues are framed only by the judge under all circumstances.
 - E. If a case contains both legal and factual issues, the judge is expected to resolve the factual issue first and then the legal issue.
2. In Ethiopia, a lawyer is expected to consult one of the following legal instruments to clearly understand the material jurisdiction of the federal courts as far as civil cases are concerned. Which one?
 - A. The FDRE Constitution
 - B. The Civil Procedure Code
 - C. The Federal Courts Proclamation
 - D. Regional court establishment proclamations
 - E. The decisions of the Cassation Division of the Federal Supreme Court
3. Which one of the following may be a negation to both material and local jurisdiction of courts?
 - A. Pendency
 - B. Consolidation of cases
 - C. Priority
 - D. Change of venue
 - E. Joinder of parties
4. Which one of the following is a mechanism of review of judgment by the court of rendition?
 - A. Opposition
 - B. Interpleader
 - C. Impleader
 - D. Third party defendant
 - E. Intervention

5. Which one of the following statements is true under the Ethiopian law of Civil Procedure?
- A. Absence of the defendant at the time of hearing without any sufficient cause entails dismissal of the suit.
 - B. Absence of the plaintiff at the time of hearing without any sufficient cause entails ex parte proceeding.
 - C. Absence of the plaintiff at the time of hearing entails no legal consequence.
 - D. Absence of an appellant at the time of hearing without good cause entails dismissal of the appeal.
 - E. Absence of the plaintiff at the time of hearing entails criminal punishment against the plaintiff.
6. Under the Ethiopian legal system, an individual person can be a plaintiff in civil suit where:
- A. he believes that the interest of his friend or relative or national interest is affected by the action or inaction of a certain individual or a legal person.
 - B. he shows to the court that he has a vested interest in the suit and that his suit has a cause of action.
 - C. he is an Ethiopian national or a foreign national of Ethiopian origin.
 - D. he has the capacity to pay court fees under all situations.
 - E. attains majority age despite the presence of his guardian or tutor.
7. Which one of the following statements is true about jurisdiction of courts in Ethiopia?
- A. The judicial jurisdiction of courts is defined by the FDRE Constitution.
 - B. Judicial jurisdiction of courts is defined by the Civil Procedure Code of Ethiopia.
 - C. There is no law that defines the judicial jurisdiction of Ethiopian courts.
 - D. At the federal level, material and local jurisdiction of courts is determined by the provisions of the Civil Procedure Code.
 - E. Determining jurisdiction of courts is left to the discretionary power of the Federal Supreme Court.

8. An appellate proceeding does not normally involve:
- A. framing of issues
 - B. hearing
 - C. examination-in-chief of witnesses
 - D. giving a ruling on any preliminary objection
 - E. judgment writing
9. Which one of the following statements is true about joinder of parties under the Ethiopian Civil Procedure Code?
- A. The requirements for joinder of plaintiffs and joinder of defendants are one and the same.
 - B. The requirements for joinder of plaintiffs are more stringent than the requirements for the joinder of defendants.
 - C. A plaintiff is allowed to join many defendants in one suit without any limit so long as he has a cause of action against all the defendants.
 - D. The Civil Procedure Code has expressly provided that a person can be joined as a plaintiff even against his will by the order of the court so long as such plaintiff is an indispensable party.
 - E. No individual can be joined as a co-defendant by the request of the defendant as long as the plaintiff does not have any claim against such individual.
10. The Cassation Division of the Federal Supreme Court entertains civil cases where:
- A. one of the parties is a government administrative agency or a public enterprise.
 - B. the case contains both factual error and error of law.
 - C. the case involves only issues of private international law.
 - D. it is proved that the lower courts decided the case by misapplying facts.
 - E. the decision is final and contains fundamental error of law.
11. Which of the following is **NOT** a factor of relevancy of facts with facts in-issue in criminal case?
- A. Character
 - B. Motive
 - C. Spontaneous declaration
 - D. State of things
 - E. Intimidation

12. Which of the following shows relevancy of similar occurrences?
- A. If a person caught while stealing is suspected for fraudulent act.
 - B. If a person caught in robbery is suspected for forgery.
 - C. If a person caught in cheating is suspected for causing physical injury on a person.
 - D. If a person caught in robbery is suspected for the same offence again.
 - E. There is no relevance of similar occurrences with facts in issue.
13. Which of the following is correct about relevancy?
- A. It refers to facts which have high level of probative value.
 - B. It refers to facts having the potential to prove or disprove facts in issue.
 - C. It refers to facts to be framed by a court.
 - D. It is a fact which is claimed by one party and denied by the other party.
 - E. It refers to the relationship between charge and judgment.
14. Which of the following does **NOT** describe the basics of conflict of laws?
- A. It provides procedures to assist a judge in public litigation.
 - B. It helps judges to select a court to which a case is closely connected.
 - C. It helps judges to select a law to which a case is closely connected.
 - D. It is applied in resolving a legal dispute which has a foreign element.
 - E. It comprises rules of enforcement of foreign judgments.
15. Choose the alternative which does **NOT** explain conflict of laws objective.
- A. Choice-of-law process
 - B. Questions of material jurisdiction
 - C. Recognition of foreign judgments
 - D. Enforcement of foreign judgments
 - E. Recognition of arbitral awards

16. Which one of the following principles is **NOT** included in R.A. Leflar's list of choice influencing considerations in solving conflict problem?
- A. Predictability of results
 - B. Maintenance of inter-state and international order
 - C. Duplication of the judicial task
 - D. Advancement of the forum's governmental interest
 - E. The application of the better rule of law
17. Which one of the following does **NOT** explain the substantive law approach of choice-of-law process?
- A. It is a non-policy-oriented choice-of-law approach.
 - B. It is characterized rules of decision directly governing multistate transactions.
 - C. The purpose is choosing the law that promotes the result.
 - D. It is result-selective or result-oriented approach.
 - E. This system is also termed as the teleological approach.
18. Which one of the following is **FALSE** about granting permission to execute a foreign judgment in Ethiopia?
- A. The execution of Ethiopian judgments is allowed in the country in which the judgment to be executed was given.
 - B. The judgment was given by a court duly established and constituted.
 - C. The judgment-creditor is given the opportunity to appear and present his defence.
 - D. The judgment to be executed is final and enforceable.
 - E. Execution is not contrary to public order or morals.
19. One of the following is **NOT CORRECT** about foreign arbitral awards to be enforced in Ethiopia.
- A. Reciprocity is not sought to enforce foreign arbitral awards.
 - B. The award has been made following a regular arbitration agreement.
 - C. The parties have had equal rights in appointing the arbitrators.
 - D. The arbitration tribunal was regularly constituted.
 - E. The award must be enforceable on the condition laid down in Ethiopian laws.

20. Among the following alternatives, one is **NOT** included under rules governing conveyance of rights in an immovable.
- A. Rules governing transfer of choses in possession.
 - B. Capacity of the party who conveys to make an effective conveyance.
 - C. The capacity of the party to whom the conveyance is made.
 - D. The formal validity of the conveyance.
 - E. The nature of the interest transferred.
21. In principle, in Ethiopia, how does the Law of Criminal Procedure relate to substantive criminal law?
- A. It provides for a list of conducts to which the substantive criminal law attaches penalty.
 - B. It recognizes penalties for conducts which the substantive criminal law prohibits.
 - C. It presents rules for prosecuting conducts criminalized by substantive criminal law.
 - D. It recognizes the general principles on which the system of criminal law is built.
 - E. It contains rules which can be used to fill the gaps in the substantive criminal law.
22. Prosecution is one of the processes that we observe in criminal justice systems. That being the case, which one of the following falls within the scope of this process?
- A. Criminalizing an undesirable conduct.
 - B. Imposing sentences for crimes committed.
 - C. Giving pardons to convicted criminals.
 - D. Providing amnesty to group criminals.
 - E. Discontinuing criminal charge against suspects.
23. If information about the commission of a crime is communicated to the police, in accordance with the relevant provisions of the Criminal Procedure Code, what should the police do next?
- A. Pass on the information to prosecution office.
 - B. Frame a criminal charge based on the information received.
 - C. Commence investigating the matter.
 - D. Wait for more information to come in.
 - E. Seek authorization from prosecution to start investigation.

24. In criminal justice system, one of the following chains of activities can best describe the responsibilities of the police.
- A. Conducting investigation-starting prosecution-undertaking witness examination.
 - B. Undertaking trial-conducting investigation-producing evidence during trial.
 - C. Initiating prosecution-receiving information-examining witness at trial.
 - D. Receiving information-conducting investigation-reporting to prosecution.
 - E. Receiving information-conducting investigation-deciding to prosecute.
25. Which one of the following rights can be regarded as procedural due process right?
- A. Right to get pardon.
 - B. Right to present defense evidence.
 - C. Right to get suspension of execution of penalty.
 - D. Right to seek trial by court of one's choice.
 - E. Right to delay trial.
26. Currently, which one of the following crimes is entertained by regional courts through delegation?
- A. Crimes involving negotiable instruments
 - B. Crimes involving negligent homicide
 - C. Crimes against sexual liberty such as rape
 - D. Crimes against the institution of family
 - E. Crimes against property of individuals
27. In light of the dictates of the principle of presumption of innocence, which one of the following sentences is true in the Ethiopian context?
- A. The accused person does not have to present defence evidence until the prosecution makes a case against him.
 - B. Someone who is charged for committing a crime will immediately start defending himself.
 - C. Both the prosecution and the accused will present their defence evidence simultaneously.
 - D. There is an exception to the rule that everyone is presumed innocent until proved guilty.
 - E. Once the presumption of innocence is destroyed by the prosecution, there is no chance for it to be restored.

28. Which one of the following can be a good reason to adjourn hearing?
- A. Failure of the accused's lawyer to appear for no good reason.
 - B. Non-appearance of prosecution for no good reason.
 - C. Failure of prosecution witnesses to appear.
 - D. Minor alterations to the charge.
 - E. The need to comfort the accused.
29. During trial, which one of the following is the duty of the prosecution?
- A. Opening his case, calling witnesses, and conducting cross-examination of witnesses.
 - B. Opening his case, calling witnesses, and conducting examination-in-chief and cross-examination of witnesses.
 - C. Opening his case, calling witnesses, and conducting cross-examination and re-examination of witnesses.
 - D. Opening his case, calling witnesses, and conducting re-examination of witnesses after their examination-in-chief by the accused.
 - E. Behaving in a manner that is impartial and objective throughout the trial.
30. If the accused person declares that he has completed introducing his defence witnesses and he has no written evidence, what will the court order the parties to do next?
- A. To submit their opinions on how the trial was conducted, with their complaints, if any.
 - B. To submit their final addresses on questions of law and fact.
 - C. To submit their sentencing opinions.
 - D. To submit any objection they may have against the charges.
 - E. To submit their request about introduction of additional evidence, if any.

SECTION II: MATCHING (10 marks)

MATCH EACH ITEM UNDER COLUMN "A" WITH ITS BEST CORRESPONDING ITEM UNDER COLUMN "B".

Column A

1. Part of circumstantial Evidence
2. Hearsay evidence
3. Right against self-incrimination
4. Common law legal system
5. Best evidence rule
6. Competence of witnesses
7. Admission
8. Higher degree of proof
9. Examination-in-chief
10. Self-defence

Column B

- A. Proof beyond reasonable doubt
- B. Justification for absence of criminal liability
- C. Applies inquisitorial litigation
- D. Concomitant evidence
- E. Leading question is not allowed
- F. Constitutional right of the accused
- G. Prefer documentary evidence
- H. Original documents
- I. Uses adversary litigation
- J. Ability to comprehend facts
- K. Absence of facts in issue
- L. Totally ignore documentary evidence
- M. Indirect fact

SECTION III: SHORT ANSWERS (10 marks)

GIVE A SHORT ANSWER TO THE FOLLOWING QUESTIONS.

- 3.1. Distinguish between general and special jurisdiction of courts in conflict of laws. **(3 marks)**
- 3.2. Distinguish between facts in issue and relevant facts **(3 marks)**
- 3.3. What is the probative value status of expert evidence in Ethiopia in criminal cases? **(4 marks)**

SECTION IV: ESSAY TYPE QUESTIONS (20 marks)

WRITE SHORT ESSAY TO THE FOLLOWING QUESTIONS.

- 4.1. Write a short essay of not more than 15 (fifteen lines) explaining the rights of accused persons in Ethiopia. **(10 marks)**.
- 4.2. "Permission to execute a foreign judgment shall not be granted unless the execution of Ethiopian judgments is allowed in the country in which the judgment to be executed was given." Explain this statement in Ethiopian execution of foreign judgments rules and policy implications. **(10 marks)**.

SECTION V: HYPOTHETICAL CASE PROBLEMS (30 marks)

READ THE FOLLOWING TWO HYPOTHETICAL CASES AND ANSWER THE QUESTIONS THAT FOLLOW. SUPPORT YOUR ANALYSIS WITH THE RELEVANT PROVISIONS OF THE CIVIL PROCEDURE CODE.

5.1. Hypothetical Case Problem 1 (15 marks)

Mr. X sued Mr. Y alleging that the latter intentionally destroyed his property. The lawyer of Mr. X included the name of the plaintiff, Mr. X, in the witnesses list so that Mr. X would give his testimony in support of his claim. Mr. X appeared as a witness and took an oath as any other witness. Then, the lawyer of Mr. X started to put examination-in-chief questions to the plaintiff as any other witness. However, the judge did not allow the lawyer to do so stating that questions in examination-in-chief could not be forwarded to the plaintiff by the lawyer. The judge said that questions should rather be forwarded to the plaintiff witness by the judge himself.

5.1.1 State your legal opinion on whether the judge has committed procedural irregularity. Why/why not? (15 marks)

5.2 Hypothetical Case Problem 2 (15 marks)

Mr. D lodged an appeal to the Federal High Court against a decision of the Federal First Instance Court. The respondent in this appeal (Mr. W) lodged a cross-objection against some parts of the decision of the Federal First Instance Court although he (Mr. W) was satisfied with most of the reliefs the court granted him. At the date on which the court decided to hear both appeals, Mr. W did not appear before the appellate court thinking that his absence on that date did not make any difference on the outcome of his case.

5.2.1 Assuming that you were the judge, what action would you take before you resort to examining the merits of the appeals? (15 marks)

THE END